

ASCII MASTER FLOW – PANEL 1/9: Apex court inside one integrated judicial hierarchy

ARTICLES 124-147, PART V

- +-- Supreme Court: constitutional apex + final appellate court
- +-- High Courts: State-level constitutional courts
- +-- subordinate courts: ordinary trial and first-appeal structure

INTEGRATED DOES NOT MEAN UNITARY ADMINISTRATION

Article 141 promotes legal uniformity; Articles 226, 227 and 235 preserve local access and control.

STRUCTURE CARD

sanctioned strength 34 including CJI | retirement 65 | seat Delhi under Article 130

Article 145(3) -> at least five judges for a substantial constitutional question.

ASCII MASTER FLOW – PANEL 2/9: Appointment power, collegium evolution and the NJAC test

ARTICLE 124 TEXT -> President appoints after constitutionally required consultation

DOCTRINE TIMELINE

First Judges Case (1981) -> executive primacy

Second Judges Case (1993) -> judicial primacy; collegium created

Third Judges Case (1998) -> CJI + four senior-most judges for Supreme Court appointments

99th Amendment + NJAC Act, 2014 -> commission model

Fourth Judges Case (2015) -> NJAC invalid; collegium restored

REFORM TEST

transparent criteria + diversity + timely processing, without executive capture of adjudication.

ASCII MASTER FLOW – PANEL 3/9: Qualifications, tenure, removal and independence firewall

QUALIFICATION

Indian citizen + five years as High Court judge OR ten years as High Court advocate
OR distinguished jurist in the President's opinion.

SERVICE

constitutional oath -> secure tenure to 65 -> charged expenditure -> protected conditions
post-retirement practice prohibited before any court or authority in India.

REMOVAL

proved misbehaviour or incapacity -> special majority in each House -> presidential order.

INDEPENDENCE + ACCOUNTABILITY

security, salary and contempt power -> decisional autonomy
declaration of assets, in-house process and reasoned appointments -> public legitimacy.

ASCII MASTER FLOW – PANEL 4/9: Jurisdiction gateway: choose the constitutional route first

FEDERAL DISPUTE -> Article 131 original jurisdiction, legal right dispute is essential.

FUNDAMENTAL RIGHT -> Article 32; itself a Fundamental Right.

GENERAL PUBLIC-LAW WRONG -> High Court Article 226 is wider in cause and territorial reach.

CONSTITUTIONAL APPEAL -> Article 132 | civil -> 133 | criminal -> 134.

SPECIAL LEAVE -> Article 136 extraordinary discretion, not a regular fourth appeal.

ADVISORY -> Article 143; opinion is advisory and normally non-binding.

CURRENT ASSENT CONTROL

State of Tamil Nadu v. Governor of Tamil Nadu (2025) used timelines and deemed assent on its facts.

In re Assent, Withholding or Reservation of Bills (2025) is a non-binding advisory opinion:

no rigid court-made timelines or automatic deemed assent; prolonged inaction remains reviewable.

ASCII MASTER FLOW – PANEL 5/9: Review, curative power, court of record and contempt

ARTICLE 127 REVIEW

error-control within prescribed grounds -> finality remains the rule.

CURATIVE PETITION

Rupa Ashok Hurra (2002) -> rare post-review cure for grave miscarriage

-> no routine second review.

ARTICLE 129 COURT OF RECORD

authoritative records + power to punish contempt.

CONTEMPT LIMIT

fair criticism is not contempt; power protects administration of justice.

Supreme Court Bar Association (1998) -> Article 142 cannot replace the governing disciplinary law.

ASCII MASTER FLOW – PANEL 6/9: Precedent, complete justice, assistance and bench discipline

ARTICLE 141

ratio decidendi of Supreme Court law binds all courts; obiter persuades, not identically binds.
larger Bench > smaller Bench; coordinate Bench ordinarily refers disagreement.

ARTICLE 142

complete justice in the cause or matter before the Court

- +-- fills remedial gaps
- +-- cannot ignore substantive statutory or constitutional limits
- +-- does not create a free-standing legislative power.

ARTICLE 144 -> all civil and judicial authorities act in aid.

ARTICLE 145 -> Court rules; five-judge floor for Article 143 and substantial interpretation.

Articles 126-128 -> acting CJI, ad hoc judges and retired-judge sittings are distinct routes.

ASCII MASTER FLOW – PANEL 7/9: Judicial review, Basic Structure, Ninth Schedule and tribunals

CONSTITUTIONAL SUPREMACY → judicial review of law and executive action

DOCTRINE CHAIN

Kesavananda Bharati (1973) → amendment power cannot damage Basic Structure

Minerva Mills (1980) → limited amendment power + Parts III-IV harmony

I.R. Coelho (2007) → post-24 April 1973 Ninth Schedule laws face Basic Structure review

TRIBUNALS

specialised adjudication may supplement courts.

L. Chandra Kumar (1997) → High Court Article 226/227 and Supreme Court Article 32 review

remain part of the Basic Structure; tribunals cannot become total constitutional substitutes.

ASCII MASTER FLOW – PANEL 8/9: PIL, activism, restraint and social-transformation controls

ACCESS EXPANSION

Hussainara Khatoon (1979) -> speedy trial and undertrial justice
epistolary jurisdiction + relaxed standing -> collective-rights access
continuing mandamus -> monitored compliance where ordinary relief is inadequate.

JUDICIAL LEGISLATION

Vishaka (1997) -> interim norm in a legal vacuum, anchored in rights and international law.

CONTROL BOARD

rights failure + legal vacuum may justify calibrated relief
BUT policy merits, polycentric choices and institutional capacity require restraint.

ENVIRONMENT

Article 21 + principles + statutory review -> constitutionalisation without replacing regulators.

ASCII MASTER FLOW – PANEL 9/9: Comparisons, delivery deficits, traps and the Mains spine

INDIA-UK

written supreme Constitution + strong review versus parliamentary sovereignty under UK doctrine.

INDIA-USA

collegium-led recommendation versus presidential nomination and Senate confirmation.

DELIVERY CHAIN

legal authority -> affordable filing -> timely hearing -> reasoned order -> implementation.
technology helps listing, e-filing and access; it does not itself cure vacancies or exclusion.

PRELIMS FIREWALL

Article 32 narrower in cause than 226 | Article 136 discretionary | Article 143 advisory
Article 142 is bounded | Constitution Bench minimum five, not every constitutional plea.

MAINS SPINE

define role -> cite Article -> explain mechanism -> case with year -> limit -> access reform
-> independent, accountable and institutionally restrained constitutional-court conclusion.